IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NORTH CAROLINA

LAURA ELIZABETH BELL, on behalf of herself and all others similarly situated, Plaintiff, v. CRAFT REVOLUTION, LLC d/b/a ARTISANAL BREWING VENTURES; ARTISANAL BREWING VENTURES CHARLOTTE, LLC; and DOE DEFENDANTS 1-10. Defendants.	Civil Action No.: **CLASS AND COLLECTIVE ACTION COMPLAINT** **JURY TRIAL DEMANDED**

Plaintiff Laura Elizabeth Bell ("Plaintiff"), on behalf of herself and all others similarly situated, alleges as follows:

Plaintiff Laura Elizabeth Bell ("Plaintiff"), on behalf of herself and all others similarly situated, alleges as follows:

INTRODUCTION

1. This is a class and collective action brought on behalf of "Tipped Employees" who work or have worked at any of the taprooms ("Taprooms") that are owned, operated and/or otherwise managed or controlled by Defendants Craft Revolution, LLC d/b/a Artisanal Brewing Ventures and otherwise managed or controlled by Defendants Craft Revolution, LLC d/b/a Artisanal Brewing Artisanal Brewing Ventures Charlotte, LLC (together "ABV," the "Company," or "Defendant"), and Ventures and Artisanal Brewing Ventures Charlotte, LLC (together "ABV," the "Company," or have been subject to the unlawful practices detailed herein.
"Defendant"), and have been subject to the unlawful practices detailed herein.

2. Defendants operate Taprooms under the following brands: Southern Tier Brewing Company, Victory Brewing Company, Bold Rock Hard Cider, Sixpoint Brewery, and Southern Tier Company, Victory Brewing Company, Bold Rock Hard Cider, Sixpoint Brewery, and Southern Distilling Company.
Tier Distilling Company.

3. According to Defendants' website, ABV ". . . has operations in Lakewood, Buffalo, Cleveland, Pittsburgh, metro Philadelphia, Brooklyn, Asheville, Mills River, and Nellysford." See Cleveland, Pittsburgh, metro Philadelphia, Brooklyn, Asheville, Mills River, and Nellysford." *See* https://artbrewventures.com/about/ (last visited December 5, 2023).
https://artbrewventures.com/about/ (last visited December 5, 2023).

persons composed of:

All current and former Tipped Employees who have worked for Defendants in the Commonwealth of Pennsylvania during the statutory period covered by this Complaint (the "PA Class").

26. The Collective Class and the PA Class are hereafter collectively referred to as the "Classes."

SUMMARY OF CLAIMS

27. Plaintiff alleges on behalf of the Collective Class that they are: (i) entitled to unpaid minimum wages from Defendants for hours worked for which Defendants failed to comply with the notice provisions of the tip credit and pay the mandatory minimum wage, as required by law; (ii) entitled to unpaid OTC work; and (iii) entitled to liquidated damages pursuant to the FLSA, 29 U.S.C. § 201 *et seq.*

28. Plaintiff alleges on behalf of the PA Class that Defendants violated the PMWA by failing to comply with the tip credit provisions, as required by law, and consequently failing to pay them the appropriate minimum wages for all hours worked. In addition, Defendants also violated the PMWA by failing to pay the PA Class members the full minimum wage for time spent performing non-tip generating work. Finally, Plaintiff alleges on behalf of the PA Class that Defendants violated the WPCL by failing to pay Plaintiff and members of the PA Class all wages due and owing (the minimum wage) as they had agreed upon.

PARTIES

29. Plaintiff Laura Elizabeth Bell ("Plaintiff" or "Bell") is a resident of the Commonwealth of Pennsylvania, living in Pittsburgh, who was employed by Defendants as a "bartender" at the Southern Tier Brewing Company Taproom located at 3116 N. Shore Drive, in Pittsburgh, Pennsylvania. While employed as a Tipped Employee, Defendant failed to compensate Plaintiff properly for all hours worked.

30. Defendant Craft Revolution, LLC d/b/a Artisanal Brewing Ventures ("Craft Revolution") is a Delaware corporation that maintains its principal place of business at 4001 Yancey

57. Moreover, Defendants had employees from one brand provide training on that brand's beverages at the Pittsburgh Taproom.

58. As such, upon information and belief, the employment practices complained of herein occurred at all of Defendants' locations as Defendants utilized common labor policies and practices at each of its locations. Accordingly, Defendants are responsible for the employment practices complained of herein.

PLAINTIFF'S EXPERIENCE WORKING FOR DEFENDANTS

59. As set forth above, Plaintiff was employed by Defendants as a "bartender" in their Pittsburgh Taproom location in the Commonwealth of Pennsylvania. Plaintiff worked at this location from in or about late August/early September 2018 through the end of July 2023.

60. Plaintiff typically worked four to five shifts per week. She would typically arrive at 3:45pm (approximately 15 minutes before the Taproom opened to the public) and would stay until approximately 11:00 p.m. to 11:30 p.m.

61. Plaintiff's hourly wage rate from Defendants was $2.83 an hour and earned tips from customers who chose to leave a gratuity. Plaintiff does not ever recall the hourly wage being raised by Defendants above $2.83 for any day worked, irrespective of how little tips were earned or the type of work performed.

62. Plaintiff recorded her work time by logging into Defendants' timekeeping system through the point-of-sale ("POS") system.

63. When working as a bartender, Plaintiff placed her cash tips in a bucket she shared with the other bartender(s) working with her.

64. At the end of the night, management would collect the tip bucket and Plaintiff's drawer from her cash register and take it upstairs to perform end-of-night accounting. Management

JURISDICTION AND VENUE

13. This Court has subject matter jurisdiction over this matter pursuant to 28 U.S.C. § 1331 and 29 U.S.C. § 201 et seq.

14. Further, this Court also has supplemental jurisdiction over Plaintiff's state law claims pursuant to 28 U.S.C. § 1367 because those claims derive from a common nucleus of operative facts.

15. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b)(ii) as a substantial part of the acts or omissions giving rise to the claims alleged herein occurred within this judicial district, and Defendants, as a single integrated enterprise, are subject to personal jurisdiction in this district.

PLAINTIFF'S EXPERIENCE WORKING FOR DEFENDANTS

74. Notably, Plaintiff was never instructed to clock in under a different job code when performing non-tip generating work or when working prior to or after the Taproom opened/closed. Indeed, to the best of Plaintiff's knowledge, Defendants did not keep track of such time separately from Plaintiff's entries into the POS system.

75. To the best of Plaintiff's recollection, she believes she spent approximately one-third of her total shift performing side work tasks.

76. Further, upon information and belief, Defendants had side work checklists for opening, mid-shift, and closing tasks for other tranches of Tipped Employees, including servers.

77. The precise amount of time Plaintiff recorded as working each week, upon information and belief, is maintained in Defendants' employment and/or payroll records.

THE TIP CREDIT PROVISION & REQUIREMENTS

FLSA Requirements

78. Rather than pay its Tipped Employees the applicable minimum wage (either the applicable state minimum wage or the federal minimum wage, whichever is higher), Defendants chose to take a tip credit and pay these employees less than the applicable minimum wage.

79. Under applicable law, in certain circumstances, it is permissible for an employer to take a tip credit and pay its employees less than the mandated minimum wage, provided that the employee's tips received from customers plus the cash wage paid by the employer equals at least the applicable minimum wage.

80. According to the Department of Labor's ("DOL") Fact Sheet #15: Tipped Employees Under the Fair Labor Standards Act (FLSA) ("Fact Sheet #15"):

> the maximum tip credit that an employer can currently claim under the FLSA is $5.12 per hour (the minimum wage of $7.25 minus the minimum required cash wage of $2.13).

THE TIP CREDIT PROVISION & REQUIREMENTS

FLSA Requirements

FIRST CLAIM FOR RELIEF

121. At all relevant times, Defendants have employed, and/or continue to employ, Plaintiff and each of the Collective Class Members within the meaning of the FLSA.

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

122. Pursuant to their compensation policies, Defendants took a tip credit and paid

(On Behalf of the Collective Class)

Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

24. Plaintiff, on behalf of herself and the Collective Class, realleges and incorporates by

123. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 *et*

reference the paragraphs above as if they were set forth again herein.

seq. The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the

25. At all relevant times, Defendants have had gross revenues in excess of $500,000.

meaning of 29 U.S.C. § 255(a).

26. At all relevant times, Defendants have been and continue to be, an employer engaged in

124. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the

interstate commerce, within the meaning of the FLSA, 29 U.S.C. §§ 206(a) and 207(a).

members of the Collective Class, are entitled to recover from the Defendants, compensation for

27. Pursuant to their compensation policies, Defendants took a tip credit and paid Tipped

unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees

Employees only the tip-credit wage, rather than the federally mandated minimum wage.

and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

28. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 et seq.

SECOND CLAIM FOR RELIEF

The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

U.S.C. § 255(a).

125. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates

29. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of

by reference the paragraphs above as if they were set forth again herein.

the Collective Class, are entitled to recover from Defendants, compensation for unpaid wages; an

126. As set forth above, Defendants failed to comply with the FLSA, its applicable

additional equal amount as liquidated damages; and reasonable attorneys' fees and costs and

regulations (including 29 C.F.R. § 531.56(e)), and DOL guidance (including the Department of

disbursements of this action, pursuant to 29 U.S.C. § 216(b).

Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the

SECOND CLAIM FOR RELIEF

members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation

over the course of their regular workweek, while paying said employee at the sub-minimum wage,

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

tip credit rate.

(On Behalf of the Collective Class)

127. Examples of such non-tipped labor unrelated to the primary duties of Tipped

30. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates by

Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets, rolling

reference the paragraphs above as if they were set forth again herein.

121. At all relevant times, Defendants have employed, and/or continue to employ, Plaintiff and each of the Collective Class Members within the meaning of the FLSA.

122. Pursuant to their compensation policies, Defendants took a tip credit and paid Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

123. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 *et seq.* The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29 U.S.C. § 255(a).

124. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class, are entitled to recover from the Defendants, compensation for unpaid wages, an additional equal amount as liquidated damages, and reasonable attorneys' fees and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

SECOND CLAIM FOR RELIEF
FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS
(On Behalf of the Collective Class)

125. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates by reference the paragraphs above as if they were set forth again herein.

126. As set forth above, Defendants failed to comply with the FLSA, its applicable regulations (including 29 C.F.R. § 531.56(e)), and DOL guidance (including the Department of Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation over the course of their regular workweek, while paying said employees at the sub-minimum wage, tip credit rate.

127. Examples of such non-tipped labor unrelated to the primary duties of Tipped Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets, rolling silverware and stocking inventory.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, individually and/or on behalf of herself and all other similarly situated members of the Collective Class and members of the PA Class respectfully requests the Court grant the following relief:

A. Designation of this action as a collective action on behalf of the Collective Class, and prompt issuance of notice pursuant to 29 U.S.C. §216(b), apprising them of the pendency of this action, and permitting them to assert timely FLSA claims in this action by filing individual Consents to Sue pursuant to 29 U.S.C. §216(b);

of the unpaid compensation as liquidated damages.

B. Designation of the action as a class action under F.R.C.P. 23 on behalf of the PA Class;

C. Designation of Plaintiff as representative of the Collective Class and the PA Class;

D. Designation of Plaintiff's counsel as class counsel for the Collective Class and the PA Class;

E. A declaratory judgment that the practices complained of herein are unlawful under the FLSA, PMWA, and WPCL;

F. An injunction against Defendants, as provided by law, from engaging in each of the unlawful practices, policies and patterns set forth herein;

G. An award of unpaid minimum wages to Plaintiff and the members of the Classes;

H. An award of liquidated damages to Plaintiff and members of the Classes;

I. An award of interest to Plaintiff and members of the PA Class;

J. An award of costs and expenses of this action together with reasonable attorneys' and expert fees to Plaintiff and members of the Classes; and

K. Such other and further relief as this Court deems just and proper.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, individually and/or on behalf of herself and all other similarly situated members of the Collective Class and members of the PA Class respectfully requests the Court grant the following relief:

A. Designation of this action as a collective action on behalf of the Collective Class, and prompt issuance of notice pursuant to 29 U.S.C. §216(b), apprising them of the pendency of this action, and permitting them to assert timely FLSA claims in this action by filing individual Consents to Sue pursuant to 29 U.S.C. §216(b);

B. Designation of the action as a class action under F.R.C.P. 23 on behalf of the PA Class;

C. Designation of Plaintiff as representative of the Collective Class and the PA Class;

D. Designation of Plaintiff's counsel as class counsel for the Collective Class and the PA Class;

E. A declaratory judgment that the practices complained of herein are unlawful under the FLSA, PMWA, and WPCL;

F. An injunction against Defendants, as provided by law, from engaging in each of the unlawful practices, policies and patterns set forth herein;

G. An award of unpaid minimum wages to Plaintiff and the members of the Classes;

H. An award of liquidated damages to Plaintiff and members of the Classes;

I. An award of interest to Plaintiff and members of the PA Class;

J. An award of costs and expenses of this action together with reasonable attorneys' and expert fees to Plaintiff and members of the Classes; and

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Plaintiff hereby demands a trial by jury on all questions of fact raised by the complaint.

K. Such other and further relief as this Court deems just and proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Plaintiff hereby demands a trial by jury on all questions of fact raised by the complaint.

Dated: January 8, 2024

Respectfully submitted,

JAMES, MCELROY & DIEHL, P.A.

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